

Court No. - 7

Case :- WRIT - C No. - 835 of 2024

Petitioner :- Smt. Hidayet Fatima

Respondent :- State Of U.P. Thru. Secy. Energy Deptt. Lko.
And 2 Others

Counsel for Petitioner :- Vijay Kumar

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Saurabh Lavania, J.

1. The petitioner has called in question the notice issued to him for recovery of electricity dues in a case of alleged theft of electricity. The notice is dated 03.08.2023.

2. Learned counsel for the respondent-Electricity Department has placed for our perusal an order dated 07.06.2023 purporting to be a final assessment order. She concedes that the objection filed by the petitioner has not been considered. The order also does not indicate that the procedure prescribed under Clause 6.8 of the Electricity Supply Code, 2005 was followed while passing the final assessment order.

3. Consequently, the impugned demand notice dated 03.08.2023 and the final assessment order dated 07.06.2023 are hereby quashed. It is left open to the respondents to pass fresh final assessment order strictly in accordance with the procedure prescribed under Clause 6.8 of the U.P. Electricity Supply Code, 2005.

4. The respondents will also restore the electric supply to the petitioner's premises within 48 hours.

5. It shall be open to the respondents to take appropriate decision in respect of disconnection of electric supply, after final assessment order is passed.

6. The petition stands **disposed of**.

(Saurabh Lavania, J) (Manoj Kumar Gupta, A.C.J.)

Order Date :- 29.1.2024

Ankit.